

UNIT TWO

POSSESSION

DEFINITION OF POSSESSION

The term possession may be defined as the **detention** and **enjoyment** of a thing by a person **himself or through another person** in his name. It refers to the relation of person to a thing over which he may, at his pleasure, exercise such control as the character of the thing permits to the exclusion of other persons. Possession in the narrow legal sense is the holding of a thing in the power of a person who intends to exercise, with regard to it, a property right. Refer to Art 1140 of the Civil Code. The exercise of a right in relation to an object consists of either physical acts of use, enjoyment, or transformation, or legal acts of administration and disposal. Possession is, in the broadest sense, the state or relation of fact that gives a person the physical, actual and exclusive capacity with regard to a thing to carry out acts of use enjoyment or transformation.

However, the exercise of the legal acts of administration or disposal does not necessarily require the fact of possession because an agent who is acting in the name of the actual possessor may perform such acts. The owner of a thing can sell or lease it even if it is in the possession of a third party.

If a person has a thing in his power, without intending to exercise a real right to it, the situation is called simple occupancy or holding, or detention. Simple occupancy does not have, the legal effects of possession **except for the power to bring a special possessory action for the return of the occupancy**. If the occupant is allowed to defend his holding by force against acts of aggression aimed at the thing, it is simply an exercise of self-defense. Compare the provisions of Arts 1148 and 1149 of the Civil Code, which seems to treat both the holder and the possessor in a similar manner.

THEORIES OF POSSESSION

1. SAVIGNY'S THEORY OF POSSESSION

Savigny, a German jurist argued that possession consisted of two ingredients,

1. Corpus possessions, i.e., effective physical control of the thing and
2. animus domino, i.e., the intention to hold as an owner of the thing

Savigny thought that since the detentor and possessor have the same physical control the difference between these terms must be found in the mental element, the intent which distinguishes the possessor is the animus domino the desire to hold for one self and not on behalf of another. According to this theory, non-owner possessor of the thing are treated as mere holder of the thing on behalf of the true possessor hence such holders could not hold the legal possessor of that thing. Under this theory there is no concept of derivative possession.

However, this theory was faced with the difficulty that in certain cases laws of some other jurisdictions gave a non-owner possessory right which Savigny rejected as anomalies (exceptions) and termed them as derivative possession, i.e., possession derived from the owner. If so a detentors such as a borrower, deposittee, a tenant etc...must also have derivative possession.

2. JEHRING'S THEORY OF POSSESSION

Persons who hold property would be owners in majority of cases and possession was attributed to them in order to make the interdicts available. Jehring argues that whenever a person looked like an owner in relation to a thing, he had possession of it unless, based on special practical considerations, the law denied him possession.

According to this theory a possessor is a man, who in relation to a thing, is in a position in which an owner of such thing ordinarily is. In other words, a possessor is a man who, in relation to a thing resembles an owner, i.e., who has direct physical control of such thing. This theory explains those cases such as the pledgee and the usufructuary that were given possession right.

3. SALMOND'S THEORY

He started by distinguishing between possession in fact and possession in law. He claims that there is only one conception and that is possession in fact which is possession in truth and in fact, and possession in law is a legal fiction. He then distinguished between possession of physical objects, which he called corporeal possession and possession of rights, which he called incorporeal possession.

Corporeal possession is the continuing exercise of claim to the exclusive use of physical or corporeal things and the extent of this claim involves two ingredients corpus possessionis and animus possidendi. Hence, corporeal possession is animus and corpus the animus possidendi is the intent to exclude others, i.e., to hold for one's own interest.

He further classified the corpus possession under two headings;

- a) **The relation of the possessor to the thing**, which must allow him to put the thing to the use which accords with its nature.
- b) **The relation of the possession to other persons**. A person shall be considered to be in possession of a thing, where the facts of the case are such as to create a reasonable expectation of non-interference in the use of it.

ACQUISITION OF POSSESSION

- The acquisition of possession is realized if the two constitutive elements concur, i.e., where the present and exclusive power to act physically with regard to the thing (**corpus**) and the manifestations of an intention to keep the thing as owner (**Animus**) exist.
- The action by which a person obtains the present and exclusive power to act physically with regard to thing is called seizin (apprehension). This power can result from various material circumstances or situations and suffices to acquire possession, without regard to the means through which it was obtained. Thus, it is possible to take possession of a land without physically entering it or of a corporeal movable thing without touching it.
- The taking of possession can be executed not only by the intended acquirer, but also through the offices of a third party acting as an agent or representative. The intention to control a thing for one's own interest/ animus/ must be manifested by an external act which is usually represented by the taking of possession itself or entering in to an agreement or other legal transactions.

DEFECTS OF POSSESSION

Possession may be affected by flaws either in the mental element/ the animus /or in the nature of the physical acts / the corpus / through which possession has been acquired or continued. A defective possession shall not produce the effects that are normally associated with possession. Similarly, Art 1146/1/ of the Civil Code also provides that defective possession shall not give rise to any right. The following are the grounds that can render a possession defective.

1. PRECARIOUS POSSESSION

Precarious possessions refer to the possession of **those who hold a thing for another on basis of an agreement** at the expiration of the agreement, they must return the thing. Hence, the possession of a usufructuary, a limited user /usage/, a tenant farmer, leaseholder or a pledgee, a creditor secured by antichresis, a tutor with regard to a minor's property is affected by the defect of precariousness.

The defect of precariousness can be healed only by change in the nature of the possession resulting from a legal ground originating in a third person or from the owner, or from a formal contest by the simple possessor against the person for whose account he has been holding.

2. CLANDESTINE POSSESSION

Possession is clandestine, that means **not open**, if the acts by which it was acquired and continued were not such as to be known to the outside, especially to those persons against whom they are to be claimed. The possession could be considered clandestine only if the occupant took

extraordinary precautions to hide the continuation of his enjoyment. This defect can be healed as soon as it is revealed by material acts openly carried out.

3. VIOLENCE

A possession acquired or continued by acts involving physical or psychological violence is vitiated by a defect of violence. the defect is healed if the possession continues peacefully. The Ethiopian law does not clearly declare violence as a cause for defectiveness of possession. See Art 1146 of the Civil Code. However, we can deduce from the provisions of Art 1148, which allows a possessor to use force to recover a thing which has been taken away from him through violence, that a person who used force to acquire possession is not protected by the law as his action is unlawful and violates public interest for peace and order. Therefore, a possession that is acquired through violence or force is defective and cannot produce the effects of a lawful possession.

4. AMBIGUITY/ DUBIOUSNESS

Possession is said to be ambiguous where it is not clear whether the person is holding a thing in his own name or in the name of another person. According to Art 1146/3/, a possession is said to ambiguous or dubious where, in the circumstances, it is doubtful whether the thing belongs to the person who claims to be the possessor or whether he holds the thing on behalf of another person. This type of defect clearly related to the mental or animus element of possession. An ambiguous possession shall not have the effects of possession. For instance, it cannot be the base for acquisitive prescription. See Arts 1146/1/, 1168 and 1150 of the Civil Code.

EFFECTS OF POSSESSION

1. Possession may create ownership either by **occupation**, i.e., by taking control of res-nullius/ a thing without an owner/ or through the expiration of a period of **acquisitive prescription**. See Art 1151 and 1168 Of the Civil Code.
2. Possession is a prima facie **evidence of ownership**, and he who would disturb a possessor must show either title/ownership or a better possessory right and defense of lack of legal title by the possessor may not be set up him. See Art 1193 of the Civil Code.
3. Possession is the basis for certain remedies because the law protects a possessor, as it does not always know that a possession in question is unlawful. Hence, the law protects, even a wrongful possessor, from dispossession by the owner without due process of law and the owner has to institute legal action by proving his ownership right to recover the thing. See Art 1206 of the Civil Code.

POSSESSORY ACTIONS

- ✓ Possessory actions are those that are based exclusively on possession without touching the basis of the title.
- ✓ Possessory actions include actions to retain possession, actions in restraint of works by neighbors and actions to recover possession. Compare Arts 1149 and 1206 of the Civil Code.
- ✓ Possessory actions are legal actions or suits instituted by a possessor who has been disposed of his possession or whose possession is interfered with or whose possession is threatened by the actions of another person.

The purpose of these actions is either to keep the plaintiff in possession, if he has been interfered with; or to restitute him to his possession if he has been dispossessed; or to obtain the suspension of construction or other works the completion of which could adversely affect possession of the plaintiff.

The action for recovery of possession (reintegrante) **does not aim at the recognition of possession in favor of the plaintiff**. It is an action by which the possessor, or even a simple holder, who has been dispossessed can claim that a state of things, which was changed or eliminated to his detriment by violence or otherwise, be restored.

Things and interests with regard to which a possessory action can be brought are **corporeal immovable**, their **usufruct**, **servitudes** and **immovable rights of enjoyment** and use. However, since possession of corporeal movable things /chattels/ is equivalent to ownership, the action applicable to them is negatory actions, i.e., actions based on title or ownership and that are intended to recover the same.

Corporeal immovable things can be the object of possessory action bearing on possession of the land itself, only if they are in-commerce /private domain/ and are susceptible of being acquired by adverse possession/ acquisitive prescription. Hence, **it shall not apply** to things that are considered as part of the public domain. See Art 1444-1447 of the Civil Code.

The possessor of land expropriated for public purposes such as construction of local roads can bring a possessory action against the municipality, which would contest his right to be compensated. This action does not aim at retention or recovery of possession, but at the recognition for the purpose of establishing his title to the compensation.

Immovable things in the private domain of the state, the departments and municipalities can be acquired by adverse possession; hence they can be the objects of possessory actions.

Immovable things which are found on a land belonging to another person but which can be possessed separately from it, can be a separate object of a possessory action. This principle applies not only to buildings constructed on someone else's land, but also to trees and crops planted on the land of another.

Usufruct, use and habitation rights can be the object of possessory actions in as much as they are related to corporeal immovable things in-commerce/ belong to the private domain.

Legal servitudes or servitudes established by law can give rise to a possessory action provided that the plaintiff still is or was, at the time when the interference occurred, in possession of the servitude. Continuing conventional servitudes and apparent servitudes can be the subject of possessory action without the plaintiff having to show the title on which his possession is based. **However**, the exercise of discontinued servitudes cannot, in principle, serve as basis for possessory action without distinction as to whether the exercise is apparent or non-apparent.

Possessory action under Ethiopia's law

According to Art 1149/1/ of the Civil Code, a possessor [or even a holder] who is dispossessed of his possession or whose possession is interfered with may institute an action for the restoration of the thing or cessation of the interference and claim compensation for damages resulting from the dispossession or interference. Hence, our law also recognizes possessory actions for the restoration of possession and cessation of interference in possession. However, it does not clearly allow the possessor or holder to require the cessation of works on the neighboring land, which can damage or endanger the works on his land. However, **Arts 1210 and 1225/2/** of the code that impose an obligation on the holder of a land to refrain from acts that can damage or endanger buildings on a neighboring land such as excavations, digging wells, other underground works and planting trees close to boundary line, imply that a possessor whose possession is affected by such acts may apply to a court for the enforcement of these obligations by the owner/holder.

Why our law grants a mere holder the protection of possessory actions?

Under French law, a mere holder who has been dispossessed may bring a possessory action for the restoration of his holding. This is because of the need to preserve peace and order, since denying him such remedy would encourage unlawful actions of usurpers that threatens public order. **However**, a mere holder is not allowed to bring the other types of possessory actions that aimed at recognition of possession, since in these cases the acts are not considered as a threat to public peace and order.

Time limit for possessory action

According to Art 1149/2/, a possessory action of any type shall be barred if not brought within a **period of one year**/ the Amharic version provides two years/ from the day of the usurpation or interference. This means that the possessor loses his right to require the restoration of the thing or cessation of interference where he fails to institute legal action within the period of two years. **However**, he may still recover the thing by instituting action for restitution/ nugatory action/ under Art 1206 of the Civil Code provided that he **can prove his right of ownership** and as long as he has not lost his ownership through extinctive prescription. See Art 1168 and 1189 of the code.

Remedy sought from the court

Art 1149/3/ of the code provides that the court, provided that the plaintiff has proven his possession and the interference in such possession, shall order the **cessation of interference or the restoration of the thing** unless the defendant can prove forthwith and conclusively the existence of a right in his favor justifying his conduct.

USE OF FORCE

Use of force is the other means provided by the law for the protection of possession. Actually this „self-help“ type of protection is considered as a protection provided for the person of the possessor or holder and not merely for the protection of his property. It would also be unjust to prohibit a person from using force to repel or resist usurpation or to recover a thing, which has been taken away from him and require him to seek judicial remedy.

The law allows the possessor or holder to use force in order to repel violent actions of persons aimed at taking the thing under his control. **According to Art 1148 of the Civil Code**, the possessor or holder has the right to defend his possession by using a reasonable force to prevent a person who intends to dispossess him or to retake possession of a thing which has been taken away from him by force or which has been stolen from him provided that the usurper is caught in the act or when running away. The law, **under Art 1148**, entitles even a mere holder to this mode of protection of possession.

TRANSFER OF POSSESSION

The transfer of possession may result from contracts such as sale, donation or operation of the law. Possession may be transferred by the delivery or handing over the thing or documents representing the thing such as a bill of lading, consignment note, a warehouse goods deposit certificate. It may also be transferred through delivery *bravemanue*, i.e., an agreement between the holder and the person for the account of whom the former exercises possession and in which the holder ceases to hold in the name of another and begins to possess in his own name. Alternatively, it may be transferred through constructive possession in which the possessor

agrees to cease to hold in his own name and to begin to hold for the account of another who is considered as the actual possessor. See Arts 1143-1145 of the Civil Code.

LOSS OF POSSESSION

A possessor shall not be considered to have lost his possession by the sole fact that, at a given time, he was not able to exercise physical control in relation to the thing or that he did not intend to hold it in his own name and for his own benefit.

Possession is lost only by deliberate abandonment or by a physical obstacle that makes it impossible to reconstitute, at any time the possessor desires, the state of affairs that constituted the possession. However, this principle does not apply absolutely and we have to make the following distinctions. See Art 1142 of the Civil Code. Under French law possession of movable things is lost as soon as they have ceased to be under the power or control of the possessor. Possession of wild animals is lost as soon as they have acquired their freedom. Possession of tamed animals such as bees and pigeons is lost when they cease to return habitually to their hives or dovecotes, or when they lose their *animus revertendi*, i.e. their intention/habit to return“.

Possession of immovable things can be preserved *solo-animo*, i.e., it is not lost just because the possessor has voluntarily abstained, for a time, from material or physical acts of possession or has been incapable to exercise them because he was too far away, or because of the nature of the immovable, or because of some temporary obstacle. However, abnormally long intervals between acts of possession, taking in to account the nature of the thing, may be considered as a tacit renunciation. Compare Art 1142 of the Civil Code.

Furthermore, possession is not necessarily lost just because a third person has occupied the immovable. It shall be lost only if he occupies the immovable for a year. /Compare Arts 1142 and 1149 of the Civil Code/. If the former possessor lets this period elapse without any act of enjoyment or any claim for return of possession, whether he did or did not know of the adverse occupancy, he shall lose his right of possession. This is true even if he manifested his intention to continue in possession by acts such as the payment of taxes.